

Calendar Line 1, 2 & 3

Case Name: *Marzieh Abdolyousefi et al vs Mojtaba Taiebat et al*
Case Number: 22CV398906

Defendant's Motions

Defendant seeks orders that the deposition of Plaintiff be resumed, that Plaintiff answer questions which she did not answer, and that Plaintiff produce certain documents sought in requests no. 23 and 24 of the deposition notice, namely (i) statements from Plaintiff's accounts at Bank of America for the period when the parties were in the relationship; and (ii) paystubs issued by Plaintiff's employers during the period when the parties were in the relationship. In addition, the Court is asked to impose a monetary sanction against Plaintiff and her counsel by ordering them to pay at least \$6,560 in fees and costs.

The Court is not persuaded by either party's arguments regarding procedural or evidentiary deficiencies. The factual and legal assertions in these unfortunate, ongoing discovery disputes between the parties are well known to each other and to the extent, *in this instance*, there may be irregularities, the Court sees no prejudice in reaching the merits.

As to the production of documents, the motion is GRANTED. To the Court, good cause for production is readily apparent. The full and complete Bank of America Records and the paystubs for the requested time period are directly related to Defendants allegations regarding the violation of the parties' financial agreements. Plaintiff is not entitled to make her own decisions regarding the relevance of information contained within the material or scope of the discovery by redacting information or omitting pages. Moreover, Plaintiff fails to justify any further objections to the disclosure, she has already produced piecemeal versions in response to the requests, and there is a protective order to alleviate any privacy issues. Any lingering concerns are thus outweighed by Defendant's right to discovery and the protections in place.

Accordingly, Plaintiff shall produce all remaining paystubs and all pages of all statements of Bank of America for the requested time period that are under her control in response to RFP 23 and 24. Also, a party to a civil action is required to produce, in response to a demand for production, documents "in the possession, custody, or control" of the party. (Code Civ. Proc. § 2031.010.) Documents that are not in a party's possession are nonetheless in the party's control if the party has a legal right to obtain the documents upon demand. Section 2031.010 is based on Rule 34 of the Federal Rules of Civil Procedure. (See 2 Witkin, Cal. Evid. 4th (2000) Discovery, § 118, p. 958). "Because of the similarity of California and federal discovery law, federal decisions have historically been considered persuasive absent contrary California decisions." (*Liberty Mutual Ins. Co. v. Superior Court* (1992) 10 Cal.App.4th 1282, 1288.) In the context of Rule 34, "control" is defined as the legal right to obtain documents upon demand. (See *In re Citric Acid Litigation* (9th Cir.1999) 191 F.3d 1090, 1107.)

Defendant's motion to compel further answers at deposition is GRANTED IN PART. Unless the objecting party demands the taking of the deposition be suspended to permit a motion for a protective order, "the deposition shall proceed subject to the objection." (*Stewart v. Colonial Western Agency, Inc.* (2001) 87 Cal.App.4th 1006, 1014; CCP § 2025.460(b). As Defendant argues, if Plaintiff believed that the questions were asked to harass or annoy, her

recourse was to suspend the deposition so that she could move for a protective order. Plaintiff did not do so and essentially concedes the point.

Therefore, Plaintiff is ordered to answer the specific deposition questions identified to the best of her ability, over objection if deemed appropriate. By objecting, Plaintiff's counsel preserves the objection for trial, at which the merits of the objection may be considered. However, it is an improper basis to instruct his client not to answer. Except as described below, the Court finds no substantial justification for Plaintiff's counsel to direct his client not to answer. Thus, Plaintiff is ordered to respond to the questions that are the subject of this motion when the deposition resumes, with the following exceptions:

QUESTION AT 10:17 – Objection sustained. Irrelevant and would only serve the purpose of annoying and harassing as explained in Plaintiff's declaration. The inquiry into whether Plaintiff transferred money to assist her parents, whether they were in need or not, does not require disclosure of their current place of residence.

QUESTION AT 73:24-25 – The witness answered the question and shall not be compelled to answer further.

QUESTION AT 114:9 - The witness answered the questions and shall not be compelled to answer further.

QUESTION AT 149:24-150:1 – The witness answered the question and shall not be compelled to answer further.

The court shall impose a monetary sanction against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel an answer or production, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. (Code Civ. Proc., § 2025.480(j).) As explained above the Court finds no substantial justification or other circumstances to avoid the imposition of sanctions. Plaintiff and her counsel, jointly and severally, shall pay to Defendant \$6,500.00 in monetary sanctions within 15 days of service of the final order.

Plaintiff's Motions

Plaintiff seeks orders (1) quashing the Deposition Subpoenas for Production of Business Records served by Defendant on: SRI International, Automation Anywhere, Inc., eBay, Inc. and Amazon.com Services, LLC; and (2) awarding monetary sanctions in favor of Plaintiff and against Defendant and his attorney. Separately, Plaintiff seeks an order (1) quashing the Deposition Subpoenas for Production of Business Records served by Defendant on Xerox Corporation; and (2) awarding monetary sanctions in favor of Plaintiff and against Defendant and his attorney.

As discussed above, good cause for seeking these materials is readily apparent to the Court. There is a protective order in place to alleviate any privacy issues. There does not appear to be any dispute that these materials will be subject to the protective order. Nevertheless, the Court will order now that any materials acquired as a result of the subpoenas at issue shall be subject to the parties' stipulated protective order.

Plaintiff's motions to quash are DENIED. Plaintiff's requests for sanctions are DENIED.

Defendant's requests for sanctions are also DENIED. As Defendant has previously recognized, all three motions before the Court are based on the same set of facts and the parties make almost the same contentions. (Ex Parte Application, filed 2/24/2025, at p. 3.) The Court has already awarded sanctions against Plaintiff based on Defendant's motions to produce and compel.

The Court will prepare the final order.

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Calendar Line 6

Case Name: *WATCHPOINT LOGISTICS, INC. et al vs Daniel Osuna et al*

Case Number: 22CV408952

Proposed Intervenor Colony Insurance Company (“Colony”), as a putative insurer of the Defendants, Daniel A. Osuna and OSD Construction, Inc. (“Defendants”) moves for an Order permitting Colony to intervene in this action and for an Order setting aside the entry of default taken against Defendants and vacating the default judgment against Defendants entered on January 13, 2025.

Despite the cases cited by the parties, the procedural particularities of Colony’s request remain, to this Court, somewhat unclear. As stated in *Western Heritage Ins. Co. v. Superior Court* (2011) 199 Cal.App.4th 1196 (*Western Heritage*), an insurer generally can “move to intervene prior to the entry of judgment, or move to set aside the default judgment if that judgment has already been entered.” (*Id.*, at pp. 1210-1211, emphasis added, citing *Reliance Ins. Co. v. Superior Court* (2000) 84 Cal.App.4th 383, 387 (“*Reliance*”).) Here, judgment has been entered and there are no other parties to the action between Plaintiff and Defendants. In a footnote, the Court in *Western Heritage* went on to say, “Clearly, if there are no other parties still litigating the action, an insurer cannot intervene in an action after a default judgment has been entered against its insured, as there will be no pending action in which to intervene. In contrast, if the action is still pending against a party which may be jointly liable with the defaulting insured, it is improper to enter judgment against the defaulting defendant while the action remains pending against the other defendant. (6 Witkin, Cal. Procedure (5th ed. 2008) Proceedings Without Trial, § 135(b), p. 573.) Thus, intervention would be possible.” (*Western Heritage*, *supra*, 199 Cal.App.4th at p. 1210 fn. 18.)

On the other hand, it has been recognized that “intervention is possible, if otherwise appropriate, at any time, even after judgment.” (*Mallick v. Superior Court* (1979) 89 Cal.App.3d 434, 437.) *Jade K. v. Viguri* (1989) 210 Cal.App.3d 1459 and *Nasongkhla v. Gonzalez* (1994) 29 Cal.App.4th supp. 1, (*Nasongkhla*) both involved intervention by an insurer for purposes of vacating a default judgment against the defendant, but those cases focused more on the merits of the motion to vacate the default judgment, not on the procedural propriety or timeliness of postjudgment intervention.

Ultimately, insurers have standing to move to set aside a default judgment against the insured. (*Clemmer v. Hartford Insurance Co.* (1978) 22 Cal.3d 865, 884–885. If such a motion is meritorious, then the insurer’s motion to intervene in the once again “pending” action is well-taken. Regardless of which motion is considered the chicken and which one the egg, Colony will not be precluded from making either.

As to Colony’s motion to vacate the default judgment, the Court finds Colony has satisfied both sections 473 and 473.5. Colony lacked actual notice of the lawsuit, and the Court is satisfied that the supporting declaration is neither conclusory nor lacking in credibility. Moreover, Colony exercised reasonable diligence under the circumstances. The undisputed fact that Defendants did not comply with their duty to cooperate under the Colony policy and did not notify Colony of the lawsuit resulted in a judgment taken through inadvertence or surprise.